REPORTABLE (2)

PASSIONATE FUZA
AND
JONAH WAKURAWAREHWA

v

THE PARLIAMENT OF ZIMBABWE
AND
THE PRESIDENT OF ZIMBABWE N.O.

CONSTITUTIONAL COURT OF ZIMBABWE
GWAUNZA DCJ, GARWE JCC, MAKARAU JCC, GOWORA JCC, HLATSHWAYO JCC, PATEL JCC, MAVANGIRA AJCC.
25 November 2025 and 16 February 2026.

Application in terms of s 167 of the Constitution of Zimbabwe, 2013.

T. Zhuwarara, for the applicants.

S.Hoko, for the 1st respondent.

L. T. Muradzikwa, for the 2nd respondent.

MAKARAU JCC-

Introduction.

1. Section 141 of the Constitution of Zimbabwe, 2013 ("the Constitution") provides for public access to and involvement in the affairs of Parliament in the following terms:

> **"Public access to and involvement in Parliament**
> Parliament must—
> *(a)* facilitate public involvement in its legislative and other processes and in the processes of its committees;
> *(b)* ensure that interested parties are consulted about Bills being

considered by Parliament, unless such consultation is inappropriate or impracticable; and

(c) conduct its business in a transparent manner and hold its sittings, and those of its committees, in public, though measures may be taken—

(i) to preserve order in parliamentary proceedings;

(ii) to regulate public access, including access of the media, to Parliament and its committees;

(iii) to exclude the public, including the media, from sittings of committees; and

(iv) to provide for the searching of persons and, where appropriate, the refusal of entry to Parliament or the removal of any person from Parliament;

but those measures must be fair, reasonable and justifiable in a democratic society based on openness, justice, human dignity, equality and freedom."

2. Bringing an application in terms of s 167 (2) (d) of the Constitution, the applicants alleged that the respondents failed to fulfil the obligation created by s 141 (a) in the enactment of the Private Voluntary Organisations Act 2025 ("the Act"). The essence of the applications was that two of the meetings that the first respondent had facilitated for the public to air their views on the bill were disrupted and ended before the applicants and other members of the public had made their contributions. On this factual basis, the applicants sought an order invalidating the Act.

3. The application was opposed.

4. Central to the determination of this application is a discussion of the onus that rests on an applicant bringing an application against the Parliament of Zimbabwe under s 167 (2) (d) of the Constitution, alleging that Parliament has failed to fulfil the obligation created by s 141 of the Constitution. The judgment discusses the material averments that such an applicant must make and the proof that is necessary to establish failure on the part of Parliament to facilitate the involvement of the public

in its legislative process, leading to the enactment of the Act whose validity is impugned.

5. In the ultimate, it is my finding that the applicants have not established that the first respondent failed "to facilitate public involvement" in the legislative process that culminated in the enactment of the Act. Therefore, and for the reasons explained below, the application cannot be granted and must be dismissed. There will be no order as to costs.

Background facts.

6. I start with the facts that are not in dispute.

7. On 1 March 2024, the first respondent gazetted the Private Voluntary Organisations Bill ("the Bill"), marking the commencement of the legislative process in respect of the Act. In accordance with its Standing Orders, the first respondent invited members of the public to attend scheduled public hearings on the Bill. Ten such meetings were scheduled throughout the country, with a meeting being dedicated to each of the ten political provinces. The applicants attended the meetings held in Harare and Masvingo, respectively.

8. On 11 April 2025, and marking the end of the legislative process, the second respondent assented to the Bill and signed it into law.

9. A factual dispute arises as to how the meetings in Harare and Masvingo were conducted. The applicants allege that both meetings were disrupted and ended

abruptly before meaningful engagements with the public could ensue. The respondents dispute these allegations and assert that the reports filed by the Chairpersons of the relevant committees record that the meetings in Harare and Masvingo were conducted and concluded as designed and captured the views of the public as intended.

10. In or about July 2024, an application was filed before this Court by Farai Maguwu, making the same allegations that the meetings in Harare and Masvingo had been disrupted and had ended abruptly. Farai Maguwu sought to invalidate and to stop the legislative process at that time. The application, which the applicants refer to and rely upon as evidence that they challenged the process as soon as the irregularity occurred, was struck off the roll. It was the view of the Court that the application had been brought prematurely.

11. After the Act became law, the applicants filed this application.

The application.

12. As indicated above, the application is brought in terms of s 167 (2) (d) of the Constitution as read with s 141. Both applicants challenge the validity of the Act. They plead the same *locus standi*, namely that they are both citizens, voters and are both associated with the civic society which they allege is directly affected by the provisions of the Act.

13. It is not in dispute that the applicants attended different public meetings convened by the first respondent after the first reading of the Bill. The first applicant attended the

meeting scheduled for Harare, whilst the second applicant attended the meeting scheduled for Masvingo. Apart from this difference, the applicants make the same allegations regarding the first respondent's handling of the two meetings. Both meetings were allegedly disrupted. The applicants draw the same conclusions that such conduct, limited as it was to Harare and Masvingo, translated into a failure by the respondents to meet the threshold of public involvement envisaged by the provisions of s 141 of the Constitution. They both argue that, on that account, the Act must be invalidated.

14. I find it appropriate at this stage to advert to the manner in which the applicants have pleaded their cause. In seeking to invalidate the Act, they have, in the same breath, extensively referred to their individual rights under the Constitution and to the provisions of s 141, which, in my view, is in the public interest. For instance, the first applicant deposes as follows in paragraph (9) of her founding affidavit:

> "The failure by the First Respondent to ensure public participation in its legislative process has breached my right to freedom of expression as provided for in s 161 of the Constitution as well as my right to participate in gatherings or groups in peaceful activities to influence, challenge or support the policies of government as enshrined in s 67 (2) (d) of the Constitution."

15. And later in paragraph 12, she deposed as follows:

> "The First Respondent has failed during its public outreach process to ensure there were measures in place which are fair, reasonable, and justifiable in a democratic society based on openness, justice, human dignity, and freedom."

16. She then concludes that such conduct by the first respondent constitutes a failure on the part of the respondents to fulfil the constitutional obligation created by s 141.

17. I return to this point in detail later.

The opposition.

18. The first respondent filed its notice of opposition and opposing affidavit out of time. Condonation was duly granted with the consent of the applicants, who did not take issue with the delay.

19. It was the view of the Court that the delay in filing the notice of opposition and opposing affidavit was not inordinate, that the explanation and accompanying apology for the delay was reasonable. These two factors, together with the strength of the first respondent's case on the merits, were sufficient to move the Court to grant the application for condonation.

20. The first respondent did not take any preliminary points but argued the matter on the merits. It argued that the applicants had misconstrued the obligation imposed on it by the Constitution. In what appears to be an alternative argument, the second respondent further argued that, given the respondents' denials of the alleged disruptions of the public hearings in Harare and Masvingo, there were material disputes of fact regarding what occurred at the meetings. In its view, these disputes could not be resolved on the papers and should be referred to the High Court for determination and establishment.

21. The second respondent opposed the matter on the merits and, in addition, raised two preliminary points. First, he challenged the applicants' *locus standi*. In this regard, he argued that the applicants should have brought this application under s 85 (1) of the Constitution to enforce their individual and fundamental freedoms, which, in their

founding affidavits, they alleged had been violated. Second, he argued that the dispute between the parties is now moot because the Bill in respect of which the applicant was allegedly denied the right to participate has been passed into law.

22. Regarding the merits of the matter, the second respondent, who was cited *ex officio* because he had assented to the Bill, argued pointedly, in my view, that nowhere in her founding affidavit did the first applicant allege and demonstrate the manner in which he had failed to fulfil a constitutional obligation that the supreme law imposes on him. I note at this stage and in passing that the second respondent did not respond directly to the allegations by the second applicant. This is of no import. Both applicants conceded that they had improperly cited the second respondent as a party to the application.

The removal of the second respondent as a party.

23. At the hearing of the matter and by consent, the second respondent was removed as a party to the proceedings and his counsel was duly excused from further participating in the hearing. It was conceded that the applicants, in their draft order, did not seek any declaration that the second respondent had failed to fulfil a constitutional obligation imposed on him

24. It was further common cause that the applicants had not made any allegations against the second respondent, either specifically against his office or generally as part and parcel of the legislative machinery. When in an engagement with the Court, it was suggested that perchance the second respondent was cited as part of the legislature, the suggestion was rejected out of hand by the applicants' counsel.

25. The second respondent was cited as a respondent because he had passed the Bill into law. In the applicant's words, the second respondent was cited "in his official capacity as the authority responsible for assenting to and signing Bills in terms of s 110 of the Constitution."

26. It was thus conceded that no allegation had been made and proved against the second respondent that he had failed to fulfil a constitutional obligation.

27. The settled position at law is that an application under s 167 creates a cause of action that is *sui generis*. The cause of action is within the exclusive jurisdiction of this court because it marks a departure from the past and is a specific attenuation of the doctrine of separation of powers among state organs. It is a cause of action against the two other arms of state to be determined in comity by the third arm of state and only in protection of the Constitution. Notably, it is not available to enforce provisions of the Constitution against any other legal entities that may have acted in breach of the Constitution.

28. That notionally and in appropriate circumstances, Parliament and the President may be jointly cited as respondents is not debatable. Where, however, this is appropriate and is done, allegations must be made against each respondent individually, indicating in what way each has failed to fulfill an obligation created by the Constitution. The position is thus to be contrasted with that at common law, where, in civil litigation, a party may be cited without any specific relief being sought against that party simply on the basis that such a party has an interest in the matter. Joinder of the President and Parliament under s 167 of the Constitution is narrower than

joinder at common law. It is not based on mere interest in the subject matter of the dispute. It is based on a demonstrable failure to fulfil a specific constitutional obligation or obligations imposed on each of the two respondents.

29. This application was not one such appropriate case where both respondents could be cited jointly. The citing of the second respondent was not procedural. No specific allegations were made against him. His joinder was therefore incompetent. The concession by applicants' counsel to the removal of the second respondent as a party was, in the circumstances, properly made.

30. Regarding costs, counsel for the second respondent did not pray for an order against the applicants. He accepted that there was no justification for the court to depart from the general approach of this Court regarding costs in a constitutional application. Finding none, the Court ordered the removal of the second respondent as a party and excused his counsel from further participating in the proceedings with no order as to costs.

31. Given that the second respondent was removed as a party, for convenience, the first respondent shall henceforth be referred to as "the respondent".

The issues.

32. In the ordinary course of litigation, following his removal as a party to the proceedings, the points raised *in limine* by the second respondent would fall by the wayside. These are, first, the applicants' *locus standi*, and second, the mootness of the dispute. However, because the applicant's *locus standi* and, where appropriate,

the mootness of the dispute are issues the Court must be satisfied about in an application such as this, I will proceed to discuss the applicants' *locus standi* and whether the enactment of the Act renders the dispute between the parties moot.

33. Counsel were engaged on the two points by the Court during oral argument.

34. Therefore, this judgment will discuss the following issues: the *locus standi* of the applicants; mootness of the dispute, or put differently, whether there remains a live dispute to invoke the Court's jurisdiction after the Bill has become an Act of Parliament; and ultimately, whether the applicants have discharged the burden to establish that the respondent failed to fulfil the constitutional obligation created by s 141 in respect of the legislative process that resulted in the Act.

35. I have deliberately framed the issue in this manner. The alleged disputes of fact raised by the applicants and seemingly accepted by the respondent in both its written arguments and oral submissions will be addressed as part of the last issue. It is my considered view that the establishment of what occurred at the two meetings does not resolve the legal issue that arises in this application.

36. Given that the first applicant did not adopt the points *in limine* raised by the second respondent and challenge the *locus standi* of the applicants or submit that the dispute between the parties is moot, I will be brief in my discussion of the two issues.

The *locus standi* of the applicants.

37. There is abundant authority from this court on the requisite legal standing in constitutional matters. The decisions take pains to distinguish *locus standi* at common

law, which is described as narrow, and the wide approach on *locus* that this court has taken to protect the Constitution and rights guaranteed by the Constitution. No useful purpose will be served by my repeating the sentiments expressed in these authorities. They lay down the law on *locus standi* in constitutional litigation in this jurisdiction. (See *Mawarire* v *R G Mugabe and Others* 2013 (1) ZLR 469 (CC) (*Mupungu* v *Minister of Justice & Others* CCZ 7-21; *Law Society of Zimbabwe* v *Parliament of Zimbabwe and another*, *Dolosi* v *S* CCZ 6-24. and *Combined Harare Residents Association and Others* v *Minister of Local Government, Public Works and National Housing* CCZ3-24)

38. It is thus my view that the settled approach in this jurisdiction is to give the widest possible latitude to litigants seeking to protect the supremacy of the Constitution.

39. The applicants filed this application because they believed the respondent had failed to fulfil a constitutional obligation. They could have brought a s 85 (1) application, with leave, to vindicate their rights as guaranteed by s 67 of the Constitution or to enforce their right to be involved in the respondent's legislative processes. In respect of the creation of a right in favour of the public to be involved in the respondent's legislative processes, see *Krugger v The President of the Republic of South Africa* 2009 (1) SA 417 (CC). In view of the fact that the applicant clearly chose to hold the respondent to its constitutional obligation as a cause of action, the advertence to their political rights under s 67 was, in my view, a misadventure but of no import.

40. In my view, the question to be answered by this Court is not why the applicants did not approach the Court under s 85 (1) but rather, whether they had the requisite *locus standi* to bring an application under s 167.

41. They did.

42. If we accept as we must, that the obligation imposed on the respondent under s 141 (a) creates a right in favour of the public to be involved in its legislative processes, then, any member of the public can bring an application under s 167 to allege that the respondent did not involve the public in the legislative process in question. The public envisaged by the section must be construed widely. It cannot be limited to only those who are directly affected by the proposed legislation.

43. The right created in favor of the public must be understood against the background of the obligation imposed on Parliament. Before the adoption of the Constitution, the power to legislate lay solely with the respondent. This power was supreme and exclusive, meaning that the respondent, acting alone and without consulting or involving any other legal person or persona, had the sole mandate to legislate. Given this background, the "public" envisioned by s 141 must therefore denote all members of the citizenry who are not Parliament, who have now been given the right to participate in the respondent's legislative and other processes.

44. The applicants, being members of the public, had the requisite standing to bring this application.

45. I turn to the next issue. This need not detain the Court.

Mootness.

46. This issue arises from the fact that the Bill in relation to which public involvement was relevant had since been signed into an Act. The issue is whether this event has rendered the dispute between the parties moot.

47. The issue is not moot for the reasons that follow below.

48. In *Khupe and Anor* v *Parliament of Zimbabwe & Ors* 2019 (3) ZLR 915, the *locus classicus* on mootness in this jurisdiction, it was held that a court may decline to exercise its jurisdiction over a matter because of the occurrence of events outside the record which terminates the controversy. The decision in *Khupe* (supra), adopted and accepted as part of our law, the reasoning in *Koko* v *Eskom Holdings Soc Limited* (J200/18) [2018] ZALCJHB 76, where at para 21 it was held:

> "The doctrine of mootness is well developed in the American constitutional law jurisprudence. A case becomes moot if a party seeks to obtain judgment on a pretended controversy, when in reality there is none, … or a judgment upon some matter which when rendered, for any reason, cannot have any practical effect upon an existing controversy. Courts exist to resolve controversies and not abstract issues. As I see it, for a court to intervene and assist the warring parties, there must be controversy between the parties. The dictionary meaning of the term controversy is a dispute, argument, or debate, especially one concerning a matter about which there is a strong disagreement. Further, the controversy must be a live one. Put differently, it must exist between the warring parties. A case would be moot if the parties are not adverse, if the controversy is hypothetical, or if the judgment of the court for some other reason cannot operate to grant any actual relief, and the court is without power to grant a decision. It is moot, if it no longer presents an existing or live controversy or the prejudice or threat of prejudice, which to an applicant, no longer exists."

49. Accepting that mootness refers to the absence of a live dispute between the "warring" parties, it follows that the principle can hardly apply when the validity of an existing statute or law is challenged. The mere existence of the law keeps the controversy between the parties live because the validity of the Act depends entirely on the

integrity of the legislative process through which it was passed. The general position of the law appears to be that where the flaw in the law making process will result in the invalidation of the law, then, the appropriate time to intervene is at the completion of the legislative process and not before. (See *Glenister v President of the Republic of South Africa and Others* 2009 (1) SA 287 (CC) and *Doctors for Life International v The Speaker of the National Assembly and Others* 2006 (6) SA 416 (CC), .

50. I have therefore considered and rejected the idea that mootness, as a principle, applies in this case simply because the Bill on which the applicants sought to express their views no longer exists and has been replaced by an Act.

51. It is therefore my finding that the dispute between the parties is not moot.

52. I now turn to the last issue in this application. It is whether the applicants have discharged the burden to establish that the respondent failed to fulfil the obligation created by s 110 (a) of the Constitution.

The obligation.

53. The obligation that the respondent allegedly failed to fulfil is created by s 141 (a) of the Constitution, cited in full above. It is an obligation that is cast in general terms, obliging the respondent to involve the public in its legislative and other processes.

54. I digress momentarily to observe that the obligation created by s 141 is not merely a duty that is not justiciable. It is an obligation whose breach has consequences. I make this observation at this stage because the authority the applicants relied on, *Doctors*

for Life International v The Speaker of the National Assembly and Others (supra), consistently uses the term "duty" to describe the obligation created by a section of the South African Constitution on the National Council of Provinces, similar to s 141 of our Constitution.

55. It is my considered opinion that what s 141 creates goes beyond a mere duty cast on parliament to involve the public in its legislative and other processes. It is an obligation deliberately inserted to open up the process of the respondent to the public. Accordingly, the Constitution grants exclusive jurisdiction to this Court to enforce the obligation. I make this observation because there is a subtle difference between a duty, which may or may not be justiciable and obligations imposed on the President and on Parliament by the Constitution, which by virtue of s 167 (2) (d) of the Constitution are not only justiciable but are mandatory.

56. It is not necessary that I further burden this judgment with the material distinction between a duty and an obligation generally. Suffice it to say, for the purposes of s 167 (2) (d), the two terms are different and are not interchangeable.

57. As discussed above, the obligation created by s 141 of the Constitution is an attenuation of the hitherto supreme and sovereign power of Parliament to legislate. It introduces the practice of involving the public in the processes of the respondent. The obligation is, however, imposed in such a way that while it gives the public the right to be involved, it retains the autonomy of the respondent to control its processes and determine to what extent and in what manner the public will be so involved. The exercise of this discretion on the part of the respondent is then subjected to judicial

review as a safeguard and guarantee of the enjoyment of the right by the public. Thus, the position that then emerges is that whilst accepting that Parliament has the unfettered discretion to determine and administer the methodology by which the public will be involved in its legislative processes in fulfilment of its obligations under s 141 (a), this Court still enjoys the jurisdiction to assess the efficacy and sufficiency of such engagement.

58. Thus, the obligation created by s 141 of the Constitution is a delicate balancing act between preserving some measure of autonomy on the part of Parliament to legislate and granting the public the right to be involved in the legislative process. The democratic values underpinning the development of the right are fully discussed by Ngcobo J in *Doctors for Life International* (supra). I will not repeat the discussion herein.

59. Given the above, what then is the onus that rests on an applicant alleging that the respondent has failed to fulfil the obligation? This is the issue that I discuss next.

The onus on the applicants.

60. Broadly speaking, an applicant who alleges that the respondent has failed to fulfil its obligations under s 141 (a) of the Constitution must allege either of the following two:

(a) that the respondent did not involve the public at all in its legislative process, resulting in the impugned outcome or law or,
(b) that the respondent facilitated the involvement of the public but, such facilitation lacked substance and was token in nature.

61. Where the applicant alleges that the respondent has failed to facilitate the involvement of the public at all in its legislative process, he or she must demonstrate in the founding and other supporting affidavits, where necessary, that the legislative process went ahead without any involvement of the public. The allegation must specifically be made that the non-participation by the public was not because the public chose not to participate, but because the respondent did not at all facilitate any such participation and involvement.

62. Where the applicant alleges that the respondent's facilitation was merely token and symbolic, lacking substance, the applicant must demonstrate the nature and scope of the facilitation and the reasons for arguing that it failed to meet the minimum threshold. In demonstrating that the respondent's facilitation failed to meet the threshold, the applicant must perforce refer to the entire range of measures taken by the respondent to involve the public. This is so even where the applicant singles out one of the measures as being woefully deficient, as happened *in casu.* In that instance, the applicant must demonstrate not only how the singled-out measure was deficient but also how that the deficiency dwarfed the efficacy of any other measure the respondent put in place and thereby discolored the respondent's entire effort.

63. Whether the totality of the measures taken by the respondent to facilitate public involvement in its legislative and other processes was inadequate in any given case is a value judgment that is fact-sensitive and must be made after taking into account all the circumstances of the case. It stands to reason that the circumstances to be taken into account in this regard must include the cumulative measures taken by the respondent to facilitate public involvement in the passage of the law. The efficacy of

the entirety of such measures is then weighed against the effect of the failed measures to determine whether or not the respondent has failed as alleged.

64. I digress again to note that, while the minimum threshold that must be reached in each case depends on the facts of the case, the tools developed to assess the legitimacy of measures put in place regarding public participation in governmental issues may, with necessary modifications, be useful. I have in mind the Sedley principles, first applied in *R v London Borough of Brent Ex parte Gunning* (1985) 84 LGR 168 and followed in several other cases. Given that a basis for assessing the adequacy and legitimacy of public involvement and consultation in governmental issues already exists, this standard may be adopted and adapted to establish the threshold in each case.

65. The observations that I make above are broad and are not exhaustive. They are intended primarily to provide a framework for the decision that I make in this application. As indicated above, it is my judgment that the applicants have not discharged the onus resting on them. I say so for the reasons that follow.

66. Firstly, while I have acknowledged that the applicants, as members of the public, had the necessary *locus standi* to bring this application, it must be borne in mind that the right to be involved in the respondent's legislative processes created by s 141 inheres in the public at large. Put differently, the right created by s 141 is not a right for every citizen to be individually involved in the respondent's legislative and other processes, but a right to be afforded an opportunity to be engaged. Thus, an applicant bringing an application under this section does so not to vindicate an individual right allegedly violated, but to assert a right denied to the public. It is in this regard that the applicants

fell into grave error. They approached the court as private citizens, first alleging violations of their rights and thereafter seeking an order holding the respondent liable for failing to fulfill a constitutional obligation. I have above referred to portions of the first applicant's founding affidavit in which she goes to great lengths to demonstrate how the respondent's conduct violated her rights.

67. I have observed that the reference to the applicants' personal rights was a misadventure that did not adversely affect their *locus standi*. However, the misadventure compromised the applicants' ability to discern the material allegation they had to make and sustain to succeed in their application. They needed to put the public at the center stage. They did not. Thus, while referring to some members of the public who were also denied the chance to make representations on the Bill due to the disrupted meetings in Harare and Masvingo, they did not file supporting affidavits to sustain this averment and to demonstrate that, because of these failed meetings, the public was thereby denied the opportunity to be involved in the legislative process. That they, as individuals, were allegedly not heard on the Bill is beside the point. It is not material in the circumstances of this application, where the applicants chose an enforcement mechanism that vindicates a public right rather than their individual rights.

68. Nowhere in their affidavits do the applicants demonstrate that the members of the public who failed to make representations at the two meetings also failed to attend other scheduled meetings or submit their views on the Bill in writing. Apart from their affidavits, there are no supporting affidavits tending to show that the "public" was involved.

69. Secondly, the applicants vacillated between alleging that the respondent had not facilitated public involvement at all and that its facilitation was token and not substantive. I have set out above the two material allegations that an applicant wishing to hold the respondent accountable under s 141 (a) must choose between. Either the respondent did not facilitate public involvement at all or facilitated it in a token manner. These applicants did not make their choice with clarity. They pleaded under both headings. The ambiguity thus created by this manner of pleading robbed the applicants of the requisite focus on the evidence necessary to sustain their application.

70. From the facts of the matter, it is clear that the applicants' argument is that there was some facilitation by the respondents, but such was token in nature. I hasten to add that this was not pleaded by the applicants in express terms. It is my own construction.

71. The important point to note in this regard is that the applicants did not make reference to any other measures that the respondent had in place as facilitation of the public apart from the two failed meetings. In its opposing affidavit, the respondent detailed various other measures that it had put in place. No answering affidavit was filed to deny these other measures that the respondent avers it had put in place to facilitate the involvement of the public in the enactment of the Act.

72. Above, I have, in broad terms, discussed the onus that rests on an applicant who alleges that the facilitation by the respondent for the public to be involved in its legislative processes fell short of the constitutional threshold. The onus entails placing all the facts before the court from which it can be objectively concluded that

the facilitation by the respondent was token and did not present a real opportunity for the public to be involved in the process. In particular, the onus entails placing before the court all the facilitation modalities that the respondent had in place and how, cumulatively, the totality of these modalities failed.

73. This, the applicants have failed to do.

74. The essence of the applicants' argument is that because two public outreach meetings were disrupted, the respondent failed to fulfil its constitutional obligation. Put differently, they argue that the disruption of the meetings at the two venues translated into the respondent's complete failure to meet the constitutional obligation. As argued by their counsel at the hearing, "regardless of various methods of participation having been provided, if the effectiveness of a selected method is disrupted in any way, Parliament would have failed to fulfil its obligation." It was counsel's submission that people should not be denied one avenue of participation because other avenues exist.

75. I am unable to agree.

76. The sizes of the two meetings that were allegedly disrupted, in terms of the number of members of the public affected, were not provided. No comparison was made of such numbers with the attendance at the eight meetings held throughout the rest of the country, where the meetings were held successfully, to substantiate the submission that the two disrupted meetings were more important than the eight

successfully held meetings and the other platforms that the respondent facilitated to involve the public.

77. As argued by the respondent, the applicants misconstrued the obligation created by s 141 and the rights that it creates in favour of the public.

78. At the hearing, the applicants' main argument was that there was a significant factual disagreement between them and the respondent regarding the conduct of the two meetings in Harare and Masvingo. Due to this, they requested that the dispute be referred to the High Court for resolution before the application could be finalised. In this regard, they relied on the order granted by this Court in *Gonese & Anor* v *President of Zimbabwe & Ors* CCZ 10-18 to direct the Judge President, in terms of r 7(b) of this Court's Rules, to investigate the factual dispute to enable this Court to determine the matter on a complete and properly established evidential record.

79. In light of the conclusion I reach, it is not necessary that this dispute of fact be determined first. This is because, even assuming, without deciding the issue, that the two meetings were disrupted as alleged, the applicants have not discharged the onus on them to demonstrate a failure on the part of the respondent to fulfil its constitutional obligation as alleged or at all.

Disposition.

80. The application cannot succeed. Regarding costs, there is no justification that this Court departs from the general position of not awarding costs in a constitutional matter. In the result, I make the following order:

1. The application is dismissed
2. There shall be no order as to costs.

GWAUNZA DCJ **I agree**

GARWE JCC **I agree**

GOWORA JCC **I agree**

HLATSHWAYO JCC **I agree**

PATEL JCC **I agree**

MAVANGIRA AJCC **I agree**

Bhatasara Attorneys, applicants' legal practitioners;

Chihambakwe & Partners, 1st respondent's legal practitioners;

Civil Division of the Attorney-General's Office, 2nd respondent's legal practitioners.